

**NEW YORK STATE SUPREME COURT
COUNTY OF NEW YORK**----- X
CRYSTAL POPE,

Plaintiff,

-against-

THE CITY OF NEW YORK, New York City Police
Department Officers JOHN DOES 1, 2, 3, etc. (the
name John Doe being fictitious as the true names of
said officers are currently not known), all of whom
are sued in their individual capacities.Defendants.
----- X**Index No.****SUMMONS**Plaintiff designates New York
County as the County of VenueVenue is based upon location where
claims arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney, at his address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer must be served within 20 days after such service of the summons, excluding the date of service.

If the summons was not personally delivered to you within the State of New York, the answer must be served within 30 days after service of the summons is complete as provided by law.

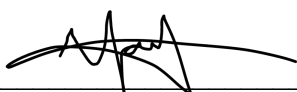
If you do not serve an answer to the attached complaint within the applicable time limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of New York. This action is brought in the County of New York because it is based upon location where claims arose.

Dated: January 28, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP

By: 

Marc Arena
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400
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Attorneys for Plaintiff Crystal Pope

To: CITY OF NEW YORK
c/o
New York City Law Department
100 Church Street
New York, New York 10007

**NEW YORK STATE SUPREME COURT
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VERIFIED COMPLAINT**JURY TRIAL DEMANDED****Index No.:**

Plaintiff Crystal Pope, by her attorneys, Beldock Levine & Hoffman LLP, as and for her
complaint against the Defendants alleges as follows:

PRELIMINARY STATEMENT

1. This civil rights action seeks redress under United States Constitution and its
amendments through 42 U.S.C. § 1983 and the laws and constitution of New York State for injuries
Plaintiff suffered from the unconstitutional conduct of Defendants the City of New York, and New
York City Police Department (“NYPD”) Police Officers and John Does 1, 2, 3 etc.

2. Plaintiff seeks redress for the damages she suffered when she was unlawfully
pepper sprayed while observing police enforcement actions. Plaintiff seeks (i) compensatory
damages for psychological and emotional distress; (ii) punitive damages to deter such intentional
or reckless deviations from well-settled constitutional law; and (iii) such other and further relief,
including costs and attorney’s fees, as this Court deems equitable and just.

JURISDICTION

3. Plaintiff brings this is civil rights action under United States and New York State law, seeking to recover for injuries caused by the violation of her constitutional and legal rights.

4. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction

VENUE

5. Venue is proper in New York County pursuant to C.P.L.R. § 504, as this is an action against the City of New York and its officers, and New York County is where the cause of action arose.

JURY DEMAND

6. Plaintiff demands a trial by jury in this action on each and every one of her claims for which a jury trial is legally available.

PARTIES

7. Plaintiff Crystal Pope is a Black woman and a citizen of the United States and the State of New York. At all times relevant to this complaint, Ms. Pope was a resident of the State of New York and County of New York.

8. Defendant the City of New York ("City") is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police

officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named defendants.

9. New York City Police Department Officers (“P.O.”) John Does 1, 2, 3, etc. (referred to collectively as the “Individual Defendants”) are and were at all times relevant herein, officers, employees and agents of the NYPD.

10. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD.

11. The Individual Defendants are being sued in their individual capacities.

12. The Individual Defendants’ acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff’s rights.

13. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

14. The true name and shield number of the John Doe Defendants are not currently known to the Plaintiff. However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff

intends to name said individuals as Defendants in an amended pleading once the true names and shield numbers of said Defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

STATEMENT OF FACTS

15. On April 4, 2020, Ms. Pope was walking in her neighborhood of Hamilton Heights, Manhattan, in the vicinity of 143rd Street and Hamilton Place.

16. Ms. Pope was walking in the vicinity of 143rd Street and Hamilton Place just before 7:00 pm.

17. While walking, Ms. Pope observed Defendant P.O. John Does 1, 2, 3, etc. dispersing a group of several adolescent Black youths.

18. Ms. Pope believed the police officers were enforcing social distancing guidelines.

19. P.O. John Does 1 and 2 were uniformed police officers who were instructing the youths to leave the area.

20. Ms. Pope continued walking toward 144th Street and Hamilton Place.

21. The Defendant police officers walked into an apartment building at 135 Hamilton Place.

22. Two of the youths she had seen previously also walked into the building behind the police.

23. Ms. Pope observed that one of the Defendant police officers was in the vestibule area and the other Defendant police officer was in the lobby area, lifting one of the young boys from the neighborhood up by the neck and choking him.

24. At that time, Ms. Pope opened the door to the building to observe the police and she was immediately pepper sprayed by the Defendant officers without justification.

25. Ms. Pope suffered burning and pain as a result of being pepper sprayed by the Defendant officers.

26. Ms. Pope was assisted by other witnesses to the incident and taken to a nearby store where they washed her eyes out with milk.

27. As a result of this incident, Ms. Pope suffered physical and emotional damages.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

28. Plaintiff served a Notice of Claim upon the City of New York within ninety days of the events giving rise to her claim.

29. On February 1, 2021, Plaintiff attended an examination in accordance with New York General Municipal Law § 50-h.

30. More than thirty days have elapsed since Plaintiff served her Notice of Claim and the City has not offered adjustment or payment of her claim.

FIRST CAUSE OF ACTION

42 U.S.C. § 1983

Violations of Plaintiff's First, Fourth, and Fourteenth Amendment Rights

31. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

32. In committing the acts and omissions complained of herein, the P.O. John Does 1, 2, 3 etc. ("Individual Defendants") acted under color of state law to deprive Plaintiff of certain constitutionally protected rights under the First, Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from use of unreasonable force;
- b. right to be free from retaliation for observing police encounters; and
- c. the right to equal protection, privileges, and immunities under the laws.

33. In committing the acts and omissions complained of herein, the Individual Defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

34. As a direct and proximate result of the Individual Defendants' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

35. The unlawful conduct of the Individual Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION

Assault and Battery

36. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

37. The Individual Defendants, through the foregoing acts, without just cause or consent, wilfully and maliciously used harmful and/or offensive physical force against Plaintiff to arrest her and placed her in apprehension of imminent harm.

38. Individual Defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

39. At all relevant times, the Individual Defendants were employees of the City of New York and NYPD and were acting within the scope of their employment.

40. The City of New York is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of the Individual Defendants set forth herein.

THIRD CAUSE OF ACTION

Negligence

41. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

42. The Individual Defendants owed Plaintiff a duty of care, including the duty to exercise due care in the course of their duties as NYPD officers and the duty to protect citizens from the intentional misconduct of other NYPD officers.

43. The Individual Defendants, through the foregoing acts, negligently failed to use due care in the performance of their duties in that they failed to perform their duties with the degree of care that a reasonably prudent and careful officer would have used under similar circumstances.

44. All of these acts were performed without any negligence on the part of Plaintiff and were the proximate cause of the injuries to Plaintiff.

45. At all relevant times, the Individual Defendants were employees of the City and were acting within the scope of their employment.

46. The City is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of the Individual Defendants set forth herein.

FOURTH CAUSE OF ACTION
Negligent Hiring, Training, and Supervision Under State Law

47. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

48. Defendant City is liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, and discipline its agents, servants, and/or employees employed and/or the NYPD with regard to their aforementioned duties to refrain for use of unreasonable and unnecessary force.

SIXTH CAUSE OF ACTION
Violations of the New York State Constitution

49. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

50. Such conduct breached the protections guaranteed to Plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 8, 9, 11, and 12 including the following rights:

- a. freedom from use of excessive force;
- b. freedom of speech and assembly; and
- c. the right to equal protection under the law.

51. As a direct and proximate result of Defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered the injuries and damages set forth above.

52. At all relevant times, the Individual Defendants were employees of the City and were acting within the scope of their employment.

53. The City is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of the Individual Defendants set forth herein.

DEMAND FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the Defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from the Defendants to the extent allowable by law;
- (c) attorney's fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: January 28, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP

By: 

Marc Arena
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400
marena@blhny.com

Attorneys for Plaintiff Crystal Pope

VERIFICATION

STATE OF NEW YORK)

: ss.:

COUNTY OF NEW YORK)

Crystal Pope, being duly sworn, deposes and says: I am the plaintiff in the within action; I have read the foregoing Verified Complaint and know the contents thereof as they relate to me; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.


Crystal Pope

Sworn to before me this
21st day of January, 2022


Notary Public

MARC A. CANNAN
NOTARY PUBLIC, State of New York
No. 02CA6265836
Qualified in Queens County 24th C
Commission Expires 07/16/2018